



CHAPTER lxii.

An Act to confer further powers upon the Rhymney Railway Company for the acquisition of lands the construction of works and the raising of capital and for other purposes. A.D. 1905.
[30th June 1905.]

WHEREAS it is expedient that the Rhymney Railway Company (herein-after called "the Company") should be empowered to acquire the lands and execute the works described in this Act:

And whereas plans showing the said lands and plans and sections showing the lines and levels of the said works the plans also showing the lands to be taken for the purposes thereof and also a book of reference to the said plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerk of the peace for the county of Glamorgan and those plans sections and book of reference are herein-after respectively referred to as the deposited plans sections and book of reference:

And whereas it is expedient that the Company should be empowered to raise further capital for the purposes of this Act:

And whereas it is expedient that the powers of the Company for the compulsory purchase of the lands required for the railway authorised by the Rhymney Railway Act 1895 (herein-after called "the Act of 1895") as revived and extended by the Rhymney Railway Act 1900 (herein-after called "the Act of 1900") should be further revived and extended and that the period allowed for the completion of the said railway should be further extended:

58 Vict.
c. xxxv.
63 & 64 Vict.
c. cix.

A.D. 1905.
2 Edw. 7.
c. lxiv.

And whereas it is expedient that the powers of the Company for the compulsory purchase of the lands required for the railways authorised by the Rhymney Railway Act 1902 (hereinafter called "the Act of 1902") should be extended and that the period allowed for the completion of those railways should be also extended :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Rhymney Railway Act 1905.

Incorporation of
general Acts.

2. The following Acts and parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act :—

The Lands Clauses Acts :

The provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near the railway :

Part II. (extension of time) of the Railways Clauses Act 1863 :

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The conversion of the borrowed money into capital ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ; A.D. 1905.

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested :

And Part I. (relating to the cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

4. Subject to the provisions of this Act the Company may for the purpose of altering or extending their works or providing further or improved accommodation for the traffic on their railways or for any other purposes connected with their undertaking enter upon take use and appropriate all or any of the lands in the county of Glamorgan herein-after described or referred to and delineated on the deposited plans and described in the deposited book of reference and may exercise the powers and execute the works herein-after mentioned (that is to say) :— Power to Company to purchase additional lands.

Certain lands in the parish of Eglwysilan in the urban district of Caerphilly situate on the north side of and adjoining the Company's Cardiff and Caerphilly Railway and between the Company's locomotive works and their Caerphilly branch railway and also extending along the eastern side of the said branch railway :

Certain lands in the parish of Llanfabon in the urban district of Caerphilly situate on the eastern side of and adjoining the Company's main line and lying south-west of the bridge carrying the Company's main line over the road leading from Quaker's Yard to Ystrad Mynach :

Certain lands in the parish of Gelligaer situate on the south-eastern side of and adjoining the main line of the Company and the Taff Vale extension of the Great

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—

Western Railway Company's Newport Abergavenny and Hereford Railway and extending from the Bedwlyn Road to the road leading from Hengoed to Maesycwmmmer :

Certain lands in the parish of Gelligaer situate on the west side of and adjoining the Company's main line and extending for a distance of about seven hundred and nineteen yards south of a point two hundred and forty-three yards south of the bridge carrying the road over the said railway at Bargoed Station :

Certain lands in the parish of Gelligaer situate on the west side of and adjoining the Company's main line and extending for a distance of about one hundred and fifty-two yards south of the bridge carrying the public road over the said railway at Bargoed Station :

Certain lands in the parish of Gelligaer situate on the south-western side of and adjoining the Company's Bargoed West goods wharf and branch railway and extending for a distance of about two hundred and twenty yards from the said wharf and in connexion therewith the Company may in the manner shown on the deposited plans divert along the south-west side of the said lands the existing footpath from Pont Caradoc to Bargoed across the said lands and when the diverted footpath shall have been completed to the satisfaction of two justices all rights of way along the existing footpath between the points of commencement and termination of such diversion shall be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement :

Certain lands in the parish of Gelligaer situate on the north-east side of and adjoining the Bargoed branch railway of the Company and lying to the south-east of the Darren hotel.

Power to
alter certain
bridges.

5. Subject to the provisions of this Act the Company may in the lines shown on the deposited plans and according to the levels shown on the deposited sections make and maintain the following works together with all necessary works and conveniences connected therewith and may enter upon take

and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for those purposes. A.D. 1905.

The works herein-before referred to and authorised by this Act are situate in the county of Glamorgan and are—

A widening of the arch of the bridge which carries the Cardiff road in the parish of Eglwysilan in the urban district of Caerphilly over the Company's Cardiff and Caerphilly Railway to the extent of twelve feet or thereabouts on each side thereof:

A widening of the arch of the bridge which carries the road leading from Penyrheol to Beddau (Furnace Road) in the parish of Eglwysilan in the urban district of Caerphilly over the Company's Walnut Tree branch railway on the south-east side thereof to the extent of twenty feet or thereabouts:

Provided always that in carrying out the said works the Company shall not permanently alter the levels of the said roads.

6. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such private rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. As to private rights of way over lands taken compulsorily.

7. The powers by this Act conferred upon the Company for the compulsory purchase of lands and buildings shall cease after the expiration of five years from the passing of this Act. Period for compulsory purchase of lands.

8. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

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Owners may
be required
to sell parts
only of cer-
tain proper-
ties.

9. And whereas in the exercise of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are herein-after included in the term “the owner” and the said properties are herein-after referred to as “the scheduled properties”:

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

(3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as “the tribunal”) shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :

- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not it shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and its final determination think fit.

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The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section ninety-two of the Lands Clauses Consolidation Act 1845. The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Additional
lands for ex-
traordinary
purposes.

10. The Company may in addition to the lands authorised to be taken by them under the powers of this Act or any other Acts contract with any party willing to sell the same for the purchase of any land adjoining or near to the Company's railway not exceeding in the whole twenty acres for the extraordinary purposes mentioned in section forty-five of the Railways Clauses Consolidation Act 1845 but nothing in that Act or this Act shall exempt the Company from any indictment for nuisance in the event of any nuisance being caused or permitted by them upon any land so acquired under the provisions of this section.

Confirmation
of agreement
with Gelli-
gaer and
Rhigos
Rural Dis-
trict Council.

11. The agreement dated the twelfth day of April one thousand nine hundred and five set forth in the Second Schedule to this Act and made between the Company of the one part and the Gelligaer and Rhigos Rural District Council of the other part is hereby confirmed and made binding upon the parties thereto respectively and the same shall be carried into effect accordingly.

For pro-
tection of
Caerphilly
Urban Dis-
trict Council.

12. In the construction of the work for widening the arch of the bridge which carries the Cardiff Road in the urban district of Caerphilly over the Company's Cardiff and Caerphilly Railway and in the construction of the work for widening the arch of the bridge which carries the road leading from Penyrheol to Beddau in the urban district of Caerphilly over the Company's Walnut Tree branch railway which works are described in the section of this Act the marginal note whereof is "Power to alter certain bridges" the Company shall reconstruct such first-mentioned bridge so as to make the roadway over such bridge of a width of forty feet between the parapets and shall reconstruct such last-mentioned bridge so as to make the roadway over such bridge of a width of twenty-five feet between

the parapets and when the said first-mentioned roadway shall have been so widened the urban district council of Caerphilly shall pay to the Company the sum of one hundred and fifty pounds towards the expense of such widening.

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13. The following provisions for the protection of John Capel Hanbury his successors lessees and assigns (in this section referred to as "the owner") shall unless otherwise agreed between the Company and the owner notwithstanding anything contained in this Act or shown on the deposited plans apply and take effect (that is to say):—

For protec-
tion of John
Capel Han-
bury.

- (1) The Company shall not under the powers of this Act purchase acquire or except as herein-after provided use any land or property of the owner other than that shown by the colour pink on the plan signed in duplicate by Charles Edward Stuart Foyer on behalf of the owner and James Hume Dodgson on behalf of the Company (herein-after in this section referred to as "the signed plan") which lands shall notwithstanding anything in this Act contained be purchased within two years from the passing of this Act:
- (2) The Company shall not be entitled to purchase or acquire the minerals under the said lands of the owner otherwise than in accordance with the provisions with respect to mines of the Railways Clauses Consolidation Act 1845:
- (3) The Company shall within six months of the passing of this Act on land to be provided by the owner at their own expense construct and complete the road marked A C B on the signed plan to the reasonable satisfaction of the owner together with all necessary retaining and boundary walls, such road and works to be constructed in accordance with the section signed by the said Charles Edward Stuart Foyer and James Hume Dodgson also within the like period of six months an approach road from the road marked "proposed new street" on the signed plan to the Company's intended goods yard on land to be provided by the owner such approach road to be of a width of 20 feet and with a gradient of 1 in 12 and to be in the position shown on the signed plan by the letters D F G and the owner

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shall within the like period of six months at his own expense construct and complete the road or street marked B to D on the said plan:

- (4) The Company shall forthwith upon the completion of the purchase of the said lands of the owner construct and provide the following works:—

(A) A diversion of the 12-inch public sewer in the manner shown by full red lines on the signed plan so as to ensure an equal system of drainage to that which now exists;

(B) All necessary and proper connexions and junctions between the diverted sewer and the existing main sewer and between the various branch drains which are or may be connected with any main sewer that may be necessitated by reason of the construction of the diverted sewer so as to connect such branch drains with such last-mentioned sewer with the requisite manholes. The users of the existing sewer are not to be inconvenienced at any time during the progress of the carrying out of the intended new works;

(C) An extension of the culverts or waterways existing under the railway under the new works to be constructed by virtue of the powers of this Act in order to carry off the water from the streams on the areas numbered 8 9 and 10 upon the signed plan;

(D) Proper boundary walls or unclimbable steel fencing of a height of at least 5 feet from the surface along the roadways between the points X Z and Y shown upon the signed plan:

- (5) The Company shall be entitled to use the said roads A C B B to D and D F G when constructed jointly with the owner and his tenants with or without horses carts and other vehicles for all purposes connected with the Company's said goods yard and undertaking and shall as regards the said roads A C B and B to D until such roads shall be taken over by the proper authority pay half the cost of the maintenance of the said roads and as regards the said road D F G so long as it forms the access to the

said goods yard only until taken over by the proper authority pay the whole of the cost of the maintenance of the said road unless in the meanwhile such road shall become a back or side access to any buildings to be erected on the lands of the owner in which event the owner shall bear and pay half the cost of the maintenance of such road :

- (6) The Company in constructing any works or exercising any of the powers of this Act shall not impede or interfere with the flow of water through the mains from the reservoir on the side of the main road near the Hanbury hotel in the parish of Gelligaer Any pipes or mains in any way injured or broken through or by reason of the operations of the Company shall be made good by the Company :
- (7) Ample provision shall be made by the Company for dealing with the surface water having a natural flow towards the land of the owner proposed to be purchased or acquired by the Company as aforesaid :
- (8) The whole of the before-mentioned works except the road or street marked B to D on the signed plan shall be carried out and executed by and at the sole cost of the Company and in accordance with plans sections and specifications to be previously approved by the owner and to his reasonable satisfaction and the works mentioned in paragraphs (c) and (d) of subsection (4) of this section shall be maintained by and at the expense of the Company to the like satisfaction :
- (9) When the owner shall have completed the proposed new road between the points X and Z marked on the signed plan the Company shall bear and pay to the owner half the cost of the construction of the said portion of road :
- (10) In constructing the railway authorised by the Rhymney Railway Act 1895 the Company shall not injuriously interfere with the existing access of the owner to and from the coal pit and the lands adjoining in the parish of Gelligaer being the inclosure numbered 2995 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1900) from and to the parish road :

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(11) In case of any difference arising between the owner and the Company as to any matter under this section the same shall be settled by arbitration in manner provided by the Lands Clauses Acts.

For protec-
tion of Great
Western
Railway
Company.

14. The Company shall not without the consent of the Great Western Railway Company purchase or acquire any of the property of the Great Western Railway Company numbered on the deposited plans 6 in the parish of Gelligaer but the Company may purchase and the Great Western Railway Company shall grant to the Company an easement or right of using the occupation road numbered 6 as aforesaid for the purpose of affording access to or from the adjoining lands which the Company are proposing under the powers of this Act to acquire but subject to the rights of other parties over the said road. From and after the granting of the said easement the Company shall be responsible for and shall maintain the said road to the reasonable satisfaction of the Great Western Railway Company and shall not alter the level of the same or interfere with the structure of the viaduct carrying the Great Western Railway over the said road.

For protec-
tion of A. H.
Stowell.

15. For the protection of Alfred Henry Stowell or other the owner or owners for the time being of the shops and dwelling-houses known as numbers 1 2 3 and 4 High Street Bargoed the following provisions shall unless otherwise agreed have effect:—

(1) If the Company shall acquire any portion of the property numbered 24 on the deposited plans for the parish of Gelligaer and described in the deposited book of reference for the said parish they shall construct a proper road for horses and carts not less than twenty feet wide leading from High Street Bargoed at a point immediately to the north of the house No. 1 aforesaid along the extreme southernmost limit of deviation delineated on the said plans for a distance of at least seventeen yards and shall construct a gate not less than nine feet wide at the entrance to such road from High Street and also a gate not less than nine feet wide leading from such road into the back of the said premises at a point seventeen yards measured from High Street aforesaid and during the construction of the said

road they shall afford sufficient access to the rear of the said houses : A.D. 1905.

- (2) The said road and gates shall be properly repaired and maintained at the expense of the Company :
- (3) The said Alfred Henry Stowell or other the owner or owners of the said shops and dwelling-houses and their lessees or tenants shall have a perpetual right of way over the said road for themselves their servants and friends with or without horses carts and carriages from High Street aforesaid to the rear of the said shops and dwelling-houses through the said gates :
- (4) The owners or occupiers of the said shops and dwelling-houses shall have duplicate keys of the gate at the entrance of the said road from High Street and shall have the entire control over the gate leading to the rear of the said shops and dwelling-houses from such road :
- (5) Nothing in this section shall affect the right of the said Alfred Henry Stowell or other the owner or owners of the said shops and dwelling-houses or their lessees to compensation under this Act in respect of the acquisition of their said premises or otherwise in respect of damage thereto by such acquisition.

16. The Company may appropriate and apply to all or any of the purposes of this Act being purposes to which capital is properly applicable any of the moneys which under and by virtue of any of their existing Acts they have raised or are authorised to raise and which may not be required for the purposes for which the same were authorised to be raised. Power to Company to apply funds to purposes of this Act.

17. The Company may for the purposes of this Act raise additional capital not exceeding in the whole sixty thousand pounds by the issue of new ordinary shares or stock or of new preference shares or stock or wholly or partially by any one of those modes as the Company may from time to time think fit. Power to raise additional capital.

18. The Company shall not issue any share created under the authority of this Act of less nominal value than ten pounds nor shall any such share vest in the person accepting the same unless and until a sum not being less than one-fifth part of the amount of such share is paid in respect thereof. Amount of new shares. New shares not to be issued till one-fifth paid thereon.

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New shares or
stock to form
part of capital
of Company.

19. The additional capital in new shares or stock created under the authority of this Act shall form part of the capital of the Company.

Scale of
voting.

20. All new ordinary or preference shares or stock to be issued under the authority of this Act shall confer the right of voting at general meetings of the Company according to the scale of votes prescribed in sections twenty-five and twenty-six of the Rhymney Railway Act 1857 and section five of the Rhymney Railway Act 1889.

Dividends on
new shares
or stock.

21. Every person who becomes entitled to new shares or stock shall in respect of the same be deemed for the purpose of dividends a holder of shares or stock of the same class or description proportioned to the whole amount from time to time called up and paid on such new shares or to the whole amount of such stock as the case may be.

New preference
shares or stock
may rank *pari*
passu with
preference
stock under
Rhymney
Railway Act
1899 if so
determined.

22. The Company may by the resolution creating or authorising the creation of the new preference shares or new preference stock by this Act authorised determine that such shares or stock shall form part of and rank *pari passu* with the Rhymney Railway preference stock created and issued by virtue of the Rhymney Railway Act 1889.

Receipt in
case of in-
capacitated
persons.

23. If any money is payable under this Act to a holder of any shares stock mortgages or debenture stock in the Company being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company for the same.

Power to
borrow in
respect of
additional
capital.

24. The Company may in respect of the additional capital of sixty thousand pounds which they are by this Act authorised to raise borrow on mortgage of the undertaking in addition to any sums which they are authorised to borrow by any other Act or Acts of Parliament any moneys not exceeding in the whole twenty thousand pounds but no part thereof shall be borrowed until shares for so much of the additional capital as is to be raised by means of shares are issued and accepted and one half of such capital is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for the whole of such capital have been issued and accepted and that one-half of such capital has been paid up and that not less than one-fifth part of the amount

of each separate share in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one-half of so much of the said additional capital as is to be raised by means of stock is fully paid up and the Company have proved to such justice as aforesaid before he so certifies that such shares or stock as the case may be were issued and accepted and to the extent aforesaid paid up and that such capital was issued bonâ fide and is held by the persons or corporations to whom the same was issued or their executors administrators successors or assigns and also so far as the said additional capital is raised by shares that such persons or corporations their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that such proof has been given which shall be sufficient evidence thereof.

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25. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which those mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section shall affect any priority of interest of any debenture stock at any time created and issued by the Company.

Existing mortgages to have priority.

26. Every provision in any Act passed before this Act with respect to the appointment of a receiver by mortgagees of the Company is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under any such provision. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

For appointment of a receiver.

27. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses

Debenture stock.

A.D. 1905. Act 1863 but notwithstanding anything therein contained the interest of all debenture stock at any time after the passing of this Act created and issued by the Company shall rank *pari passu* with the interest of all mortgages at any time after the passing of this Act granted by the Company and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Application
of moneys.

28. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied for the purposes of this Act or the general purposes of the Company being in every case purposes to which capital is properly applicable.

Interest not
to be paid out
of capital.

29. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Further
revival of
powers for
taking lands
under Act of
1895.

30. The powers granted to the Company by the Act of 1895 for the compulsory purchase of lands for the purposes of the railway authorised by that Act as revived and extended by the Act of 1900 are hereby further revived and extended and the same may be exercised by the Company during a period of three years from the thirtieth day of May one thousand nine hundred and five and on the expiration of that period those powers shall cease.

Further ex-
tending time
for construc-
tion of rail-
way autho-
rised by Act
of 1895.

31. The time limited by the Act of 1895 for the completion of the railway by that Act authorised as extended by the Act of 1900 is hereby further extended for a period of five years from the thirtieth day of May one thousand nine hundred and five and the Act of 1895 shall be read and construed as if the period by this Act limited for the completion of the said railway had been the period mentioned therein in that behalf. If the said railway be not completed within such extended period then on the expiration of that period the powers for making and completing the same and otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

32. The powers granted to the Company by the Act of 1902 for the compulsory purchase of lands for the purposes of that Act are hereby extended and the same may be exercised by the Company during a period of three years from the twenty-third day of June one thousand nine hundred and five and on the expiration of that period those powers shall cease.

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Extension
of time for
taking of
lands under
Act of 1902.

33. The time limited by the Act of 1902 for the completion of the railways by that Act authorised is hereby extended for a period of three years from the twenty-third day of June one thousand nine hundred and seven and the Act of 1902 shall be read and construed as if the period by this Act limited for the completion of the said railways had been the period mentioned therein in that behalf. If the said railways be not completed within such extended period then on the expiration of that period the powers for making and completing the same and otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Extending
time for
construction
of railways
authorised
by Act of
1902.

34. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Deposits for
future Bills
not to be
paid out of
capital.

35. Nothing in this Act contained shall exempt the Company or their railway from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

Provision
as to general
Railway
Acts.

36. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

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The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

DESCRIBING THE PROPERTIES OF WHICH PARTS ONLY MAY BE
TAKEN BY THE COMPANY.

Name of Parish.	Numbers on deposited Plans.
Gelligaer - - -	14 15 16 17 18 19 20 21 22 23 23 ^A 24.
Llanfabon - - -	5 6.

THE SECOND SCHEDULE.

MEMORANDUM OF AGREEMENT made the twelfth day of April one thousand nine hundred and five between the RHYMNEY RAILWAY COMPANY whose registered office is at Cardiff in the county of Glamorgan (herein-after referred to as "the Company") of the one part and the GELLIGAER AND RHIGOS RURAL DISTRICT COUNCIL in the county of Glamorgan (herein-after referred to as "the Council") of the other part.

WHEREAS a Bill is now pending in the present session of Parliament to confer further powers upon the Rhymney Railway Company for the compulsory acquisition of lands the construction of works and the raising of capital and for other purposes :

And whereas in order to construct the works mentioned in the said Bill the Company will be obliged to divert certain sewers belonging to the Council and also to divert or alter certain footpaths at Bargoed and Darren in the parish of Gelligaer in the said county of Glamorgan and within the district of the said Council and the Council have agreed at the request of the Company to give them permission to make such diversions to the said sewers and footpaths as aforesaid upon the terms and conditions herein-after contained.

Now it is hereby agreed as follows :—

A.D. 1905.

1. The Company shall at their own costs charges and expenses in all things execute and do the several alterations and things herein-after mentioned The whole of the said work to be carried out and completed to the reasonable satisfaction of the surveyor to the Council for the time being.

2. The work to be done by the Company as aforesaid is as follows :—

At Bargoed Take up the existing sewer pipe of the Council at the three places shown on the plan No. 1 hereto annexed by a black dotted line between the points marked "A B" "C D" and "E F" respectively on the said plan and relay the said sewer between the said several points along the track shown on the said plan by a red line such sewer to be relaid on proper lines and levels with the necessary manholes and junctions and in such a manner as to bring the portions of the sewer diverted into proper contact with the existing portions below without interfering with the flow of water and sewage matter through the said sewer Also divert the existing footpath shown on the plan No. 3 hereto annexed by a red line from the point marked "A" in plot No. 25 to the point marked "B" in plot 25A and make good the same along the track shown by dotted red lines on the said plan :

At Darren Take up the existing sewer pipe from the point marked "A" in plot 31 to the point marked "B" in plot 32 as shown on the plan No. 2 hereto annexed and relay the same between the said points along the track shown on the said plan by a red line making good the said sewer with junctions manholes and in all respects in the same way as is herein-before provided with regard to the sewer at Bargoed Also divert the existing footpath which crosses under the line of the Company at a point about one hundred and fifty yards south-east of Darren Station and make good the same and carry it under the line of the Company by means of a substantial and properly constructed subway at the point marked "C" on the said plan No. 2 hereto annexed.

3. The whole of the said work to be carried out by the Company in a good and workmanlike manner and with all reasonable speed.

4. The Company shall pay all reasonable costs charges and expenses of and incidental to the negotiation for completion and confirmation of this agreement and assuring any necessary amendment of the Company's Bill so as to accord with the terms hereof.

5. This agreement shall subject to the approval of Parliament be scheduled to and confirmed by the Bill and made binding upon the Company and the Council respectively by the said Bill and all necessary provisions shall be inserted in the Bill for enabling full effect to be given to this agreement.

6. If any question or difference shall arise between the Company and the Council relating to this agreement or the construction or meaning thereof

A.D. 1905. or as to the performance and carrying out of the same by either party such question or difference shall be referred to arbitration in manner provided by the Arbitration Act 1889.

In witness whereof the said parties hereto have hereunto affixed their common seals the day and year first before written.

The common seal of the Rhymney Railway Company was }
hereunto affixed in the presence of

W. FAIRLAMB Secretary.

L.S.

The common seal of the Gelligaer and Rhigos Rural District }
Council was hereunto affixed in the presence of

JOSEPH MORGAN Chairman.
FRANK T. JAMES Clerk.

L.S.

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